

Line 4

Case Name: *Bathena Dixon v. General Motors, LLC, et al.*

Case No.: 23CV426612

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant General Motors LLC (“GM”) moves under Code of Civil Procedure Section 437c for Summary Judgment or, in the alternative, for Summary Adjudication in its favor on each of the six Causes of Action in Plaintiff’s First Amended Complaint. Notice of Motion (the “Motion”) at 2:4-20 (filed: Dec. 10, 2025). The Motion is made on the grounds that:

1. On the First, Second, and Third Causes of Action for Violation of Subdivisions (D) & (B) & (A)(3) of Civil Code Section 1793.2, respectively, Plaintiff cannot pursue breach of express warranty claims under Song-Beverly against GM concerning a vehicle that Plaintiff did not purchase as “a new motor vehicle”;
2. On the Fourth Cause of Action for Breach of the Implied Warranty of Merchantability, Plaintiff cannot pursue breach of implied warranty claims against GM based on a vehicle she bought “used”;
3. On the Sixth Cause of Action for Fraudulent Inducement-Concealment, because the information that GM alleged failed to disclose was publicly available; and
4. On the Fifth Cause of Action for Violation of the Magnuson-Moss Warranty Act, because Plaintiff’s Magnuson-Moss warranty claim fails alongside her Song-Beverly state law claims.

Id. at 2:4-20.

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff Bathena Dixon (“Plaintiff”) brings this action against Defendants General Motors Inc. and Does 1 through 10, inclusive, for claims related to Plaintiff’s purchase of a 2019 Chevrolet Volt. (Complaint, ¶ 6.) Plaintiff alleges that on or about April 8, 2023, Plaintiff entered into a warranty contract with Defendant GM regarding a 2019 Chevrolet Volt, which was manufactured and or distributed by Defendant GM. (*Ibid.*)

In the First Amended Complaint (“FAC”) filed on May 29, 2024, Plaintiff asserts six causes of action: (1) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (d); (2) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (b); (3) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (a)(3); (4) breach of implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; (5) violation of the Magnusson-Moss Warranty Act; and (6) fraudulent inducement–concealment. On January 31, 2025, this court sustained Defendant’s demurrer to the first cause of action without leave to amend and overruled Defendant’s demurrer to the FAC’s second through sixth causes of action.

On December 10, 2025, Defendant filed a motion for summary judgment, or summary adjudication in the alternative (“Motion for Summary Judgment”), pursuant to Code of Civil Procedure section 437c. The motion is unopposed.

Analysis of the Motion

I. Legal Standard on Motion for Summary Judgment or Summary Adjudication

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A defendant seeking summary judgment must show that at least one element of the cause of action cannot be established, or that there is a complete defense to the cause of action...The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal quotation marks and citations omitted, emphasis added.) When a defendant moves for summary judgment, “its declarations and evidence must either establish a complete defense to plaintiff’s action or demonstrate the absence of an essential element of plaintiff’s case. If plaintiff does not counter with opposing declarations showing there are triable issues of fact with respect to that defense or an essential element of its case, the summary judgment must be granted.” (*Gray v. America West Airlines, Inc.* (1989) 209 Cal.App.3d 76, 81 (*Gray*).)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844, internal quotation marks omitted.) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

“Summary adjudication works the same way, except it acts on specific causes of action or affirmative defenses, rather than on the entire complaint. (Code Civ. Proc. § 437c, subd. (f).) A summary adjudication is properly granted only if a motion therefore completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (§ 437c, subd. (f)(1).) Motions for summary adjudication proceed in all

procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 464.) of Civil Code section 1793.2, subdivision (d)

II. First Cause of Action Moot

This Court has already sustained Defendant’s demurrer to Plaintiff’s first cause of action *without leave to amend* in its Order on Defendants’ Demurrer to the First Amended Complaint filed January 31, 2025 (“Order”), which renders Defendant’s Motion for Summary Judgment or Summary Adjudication of the FAC’s first cause of action moot. (Order, p. 2.)

Hence, the Motion for Summary Adjudication of Plaintiff’s first cause of action is **DENIED** as moot.

III. Second and Third Causes of Action: Statutory Violations

Defendant moves for summary judgment, and in the alternative, summary adjudication, of the FAC’s second and third causes of action for violations of Civil Code section 1793.2, subdivisions (b) and (a)(3), respectively, also called the Song-Beverly Act. Defendant’s Motion for Summary Judgment (“Motion for Summary Judgment”) argues that the FAC’s second and third causes of action are foreclosed by *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*). The court in *Rodriguez* held that Civil Code section 1793.2, subdivision (d)(2) applies only to vehicles for which a manufacturer’s new car warranty is issued with the sale, and not to used vehicles sold with a remaining balance on a preexisting warranty. (*Id.* at p. 206.)

The FAC’s second cause of action alleges a violation of section 1793.2 subdivision (b), which requires manufacturers to commence service and repair of goods not conforming with applicable express warranties within 30 days. (Civ. Code, § 1793.2, subd. (b).) The FAC’s third cause of action alleges a violation of section 1793.2 subdivision (a)(3), which requires manufacturers to make sufficient service literature and replacement parts to effect repairs during the express warranty period available to authorized service and repair facilities. (Civ. Code, § 1793.2, subd. (a)(3).)

It is true and undisputed that Plaintiff bought the vehicle at issue used, and that Defendant GM was not a party to that transaction and did not issue or provide any new or additional warranty coverage to Plaintiff or for the vehicle when Plaintiff bought that vehicle. (Defendant’s Separate Statement, Undisputed Material Fact (“UMF”), Nos. 2, 8.) Plaintiff received the balance of coverage under the Warranty that GM issued when it sold the vehicle new, prior to Plaintiff’s purchase. (UMF, No. 8.)

But as this Court has already in its Order dated January 31, 2025 (overruling GM’s Demurrer on these same causes of action), the court in *Rodriguez* only ruled on the applicability of Civil Code section 1793.2, subdivision **(d)(2)**, and Plaintiff’s second and third causes of action against defendant GM are for violations of different subdivisions of Civil Code section 1793.2, specifically subdivisions **(b)** and **(a)(3)**. (Order, pp. 2-4; see

also *People v. Leal* (2023) 93 Cal.App.5th 1143, 1162 [an opinion is not authority for propositions not considered and decided].) And importantly, whereas the plain text of subdivision (d)(2) applies to cases involving “service or repair [of] a new motor vehicle,” nowhere does the text of subdivisions (b) or (a)(3) limit their applicability to new motor vehicles. *See* Order at 2:24-4:9 (Jan. 31., 2025) (same).

Accordingly, Defendant’s Motion for summary adjudication of the FAC’s second and third causes of action on the basis that those causes of action are foreclosed by *Rodriguez* is **DENIED**.

IV. Fourth Cause of Action: Breach of Implied Warranty of Merchantability

Defendant argues that the FAC’s fourth cause of action, for breach of implied warranty of merchantability, fails because Plaintiff purchased the vehicle used. “[O]nly distributors or sellers of *used* goods – not manufacturers of *new* goods – have implied warranty obligations in the sale of *used goods*.” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399.)

It is an undisputed fact that Plaintiff purchased the vehicle used. (UMF, No. 2.)

Accordingly, Defendant’s Motion for summary adjudication of the FAC’s fourth cause of action for breach of implied warranty of merchantability is **GRANTED**.

V. Fifth Cause of Action: Violation of Magnusson-Moss Act

Defendant argues that the FAC’s fifth cause of action, for violation of the federal Magnusson-Moss Act, also fails because Plaintiff has failed to state a warranty claim under state law. “The Magnusson-Moss Warranty – Federal Trade Commission Improvement Act (Magnuson-Moss), 15 United States Code section 2301 et seq., authorizes a civilsuit [*sic*] by a consumer to enforce the terms of an implied or express warranty. Magnusson-Moss calls for the application of state written and implied warranty law, not the creation of additional federal law...(f)ailure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magnusson-Moss.” (*Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 832-833, internal case citation and quotation marks omitted.)

But as the Court above has denied summary adjudication of the FAC’s second and third causes of action, Plaintiff thus has active warranty claims under state law.

Accordingly, Defendant’s Motion for summary adjudication of the FAC’s fifth cause of action for violation of Magnusson-Moss Act is **DENIED**.

VI. Sixth Cause of Action: Fraudulent Inducement/Concealment

Defendant also moves for summary judgment, or in the alternative, summary adjudication of the FAC’s sixth cause of action for fraudulent inducement/concealment.

The FAC alleges that Defendant knew of a battery defect issue with the vehicle Plaintiff purchased and failed to disclose that issue to Plaintiff. (FAC, ¶¶ 92-104.) Defendant argues that Defendant had no duty to disclose and that Plaintiff's allegations lack the requisite specificity. (Motion for Summary Judgment, p. 9:21-26.)

“[T]he elements of a cause of action for fraud based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850, internal quotation marks and citations omitted.)

The FAC alleges that Defendant “nevertheless concealed and failed to disclose the defective nature of the Vehicle, its lithium-ion battery to Plaintiff at the time of sale, and thereafter, including during successive repair visits to GM’s authorized dealership. Plaintiff alleges that GM failed to disclose the existence of the Battery Defect at GM’s authorized dealership and during direct calls to Defendant.” (FAC, ¶ 97.)

It is undisputed that Defendant was not a party to the transaction in which Plaintiff purchased the vehicle at issue. (UMF, No. 3.) “In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.” (*Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294, fns. omitted.) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312.)

But the FAC alleges that Plaintiff presented the vehicle to GM’s authorized dealership in repair visits, suggesting that there may have been “direct dealings” between Plaintiff and Defendant. (FAC, ¶ 97.) The FAC thus alleges Defendant had a duty to disclose when Plaintiff presented the vehicle to Defendant at Defendant’s authorized repair shops. Thus, Defendant has not met its burden to “completely dispose of...” Plaintiff’s cause of action due to the FAC’s allegation of “direct dealings” between the Plaintiff and Defendant. (*Aguilar, supra*, 25 Cal.4th at p. 850.) Defendant also argues that Plaintiff’s fraud claim lacks adequate specificity. “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157, internal citations omitted.) However, “it is harder to apply this rule to a case of simple

nondisclosure...[l]ess specificity should be required of fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy[.]” (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384, internal citations and quotation marks omitted.)

Plaintiff alleges a cause of action for nondisclosure. Plaintiff alleges that “GM and its directors, officers, employees, affiliates, and/or agents...concealed and failed to disclose the defective nature of the Vehicle, its lithium-ion battery to Plaintiff...during successive repair visits to GM’s authorized dealership...and during direct calls to Defendant.” (FAC, ¶ 97.) It is undisputed that Plaintiff did not purchase the vehicle at issue from a GM authorized dealership. (UMF, Nos. 1-3.) However, Plaintiff alleges that he took the vehicle to repair visits to GM’s authorized dealership and spoke with Defendant over the phone. Additionally, Plaintiff alleges that Defendant knew about the battery defect “since 2016, if not before” and “failed to provide an adequate repair to consumers or disclose the defect to potential buyers.” (FAC, ¶ 36.) The FAC’s fraud claim is alleged with adequate specificity because the FAC “provides defendants with sufficient notice of the particular claims against them.” (*Jones v. ConocoPhillips Co.* (2011) 198 Cal.App.4th 1187, 1200 (*Jones*).) In *Jones*, the family of a Goodyear Tire Company and the Upjohn Company employee sued 19 manufacturers of 34 chemical products alleging that the decedent employee’s exposure to those products over the course of his employment caused his illness and death. (*Ibid.*) The court held that plaintiff stated a viable claim for fraudulent concealment because the complaint sufficiently put all of the defendants on notice of the facts it allegedly concealed from plaintiff. (*Ibid.*) “Based upon the existing allegations, each defendant has received notice of the particular product it made that was used at the Goodyear and Upjohn plants at which Carlos worked. The pleading further alleges these products ‘contained significant concentrations of organic solvents ... and other toxic chemicals’ and ‘[t]he toxicity of various organic solvents to the liver and kidney has long been recognized.’ Each defendant is therefore on notice that it allegedly concealed or failed to disclose the toxic properties of the product it sold to Goodyear and Upjohn during the course of Carlos’s employment.” (*Ibid.*)

Here, Plaintiff has alleged that a 2019 Chevrolet Volt manufactured by the Defendant “contained one or more design and/or manufacturing defects in the battery...that causes the high voltage battery to overheat when charged to full capacity and results in overheating when charged to full capacity or near full capacity, losses of propulsion power while driving, catastrophic fire, no crank, reduced range, thermal runaway, and/or spontaneous combustion.” (FAC, ¶¶ 6, 21.) The FAC further alleges that Defendant “knew since 2016 that the model year 2017 or newer Chevrolet Volt EV vehicles, including 2017 Chevrolet Volt vehicles” had the battery defect. (FAC, ¶ 21.) As such, the claim for fraudulent inducement is adequately pled.

Finally, Defendant argues that Plaintiff’s fraud claim fails because the information Plaintiff claims was concealed was publicly available. Defendant argues that the National Highway Traffic and Safety Administration (“NHTSA”) maintains a publicly available website allowing anyone to view Defendant’s disclosures to NHTSA about the Volt at issue. (Motion for Summary Judgment, p. 10:15-23.) Defendant further argues that the

court may take judicial notice of this information because it is publicly available on a government website. (*Id.* at p. 10, fn. 1.) Evidence Code section 453 subdivision (b) requires the party seeking judicial notice to furnish the court with sufficient information to enable it to take judicial notice, which includes copies of the documents for which judicial notice is requested. (*In re Marriage of Brewster & Clevenger* (2020) 45 Cal.App.5th 481, 497-498.) GM merely provides the website from which it claims Plaintiff might have been able to glean the information allegedly withheld but does not establish the content of the website with respect to Plaintiff's vehicle. Defendant has not furnished the court with sufficient information to allow the court to take judicial notice and has not established what if anything the plaintiff would have found had he looked at the website. The content of the website provided by Defendant in the Motion for Summary Judgment cannot properly be judicially noticed. The separate statement does not indicate that the information Plaintiff claims was concealed was publicly available (See *Parsons v. Estenson Logistics, LLC* (2022) 86 Cal.App.5th 1260, 1265, fn. 5 [if it is not set forth in the separate statement, it does not exist].) Thus, Plaintiff's claim that Defendant failed to disclose material facts is not precluded.

Accordingly, as Defendant has not met its burden at the first step of the summary judgment analysis, Defendant's Motion for summary adjudication of the FAC's sixth cause of action for fraudulent inducement/concealment is **DENIED**.

Conclusion and Order

Defendant's Motion for Summary Adjudication is **GRANTED IN PART** and **DENIED IN PART** as follows:

1. The Motion for Summary Adjudication of Plaintiff's First Cause of Action is **DENIED** as moot.
2. The Motion for Summary Adjudication of Plaintiff's Second Cause of Action is **DENIED**.
3. The Motion for Summary Adjudication of Plaintiff's Third Cause of Action is **DENIED**.
4. The Motion for Summary Adjudication of Plaintiff's Fourth Cause of Action is **GRANTED**.
5. The Motion for Summary Adjudication of Plaintiff's Fifth Cause of Action is **DENIED**.
6. The Motion for Summary Adjudication of Plaintiff's Sixth Cause of Action is **DENIED**.

Moreover, as Defendant's Motion for Summary Adjudication has been **DENIED** for several causes of actions, it follows as a matter of logic and law that Defendant's Motion for Summary Judgment is **DENIED**.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Norma Rojas v. Spread Your Wings, LLC, et al.*

Case No.: 22CV400450

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Norma Rojas (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, and 2033.280 to deem the truth of all matters specified in Plaintiff’s Request for Admissions, Set One (“RFAs”) served on Defendant Spread Your Wings, LLC (“Defendant”) on October 22, 2025, to be admitted by Defendant, and for monetary sanctions against Defendant including attorneys’ fees and costs for this Motion. Notice of Motion (the “Motion”) at 1:21-24 (filed: Dec. 19, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on October 22, 2025. Declaration of attorney Adam S. Juratovac In Support of Motion (“Juratovac Decl.”) at ¶ 2 & Exhibit A thereto (filed: Dec. 19, 2025).

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Juratovac Decl. at ¶ 3.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 2:21-3:14.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

The Motion is well supported by the law, well supported by the facts set forth in the Juratovac Declaration, and reasonable *except* with respect to the total amount of sanctions it seeks here as the Court will now explain.

Because Defendant has committed a misuse of the discovery process under Code of